

JUSTIFICATION AND APPROVAL (J&A) FOR OTHER THAN FULL AND OPEN COMPETITION

1. Agency/Contracting Activity: Department of Veterans Affairs, VA Medical Center Providence, Rhode Island.

2. Description of Action:

Nature: ☒ New Requirement ☐ Follow-on Requirement
 ☐ Mod to Existing Purchase Order/Contract Number _____

Pricing: ☒ Firm-Fixed Price ☐ Time & Materials ☐ Cost

This Justification pertains to a portion of the overall acquisition. Specifically, the brand-name equipment outlined in section three (3) of this document.

3. Description of Services or Supplies:

The total estimated value of the proposed action is \$ 35,037.21

The project will remove and replace roof shingles from sections of the roof. Roof shingles from different manufacturers do not have the same colors, patterns and profiles. The color, blended colors, pattern and profile of the shingles from different manufacturers varies significantly. In order to maintain a uniform appearance throughout the roof, and maintain the existing warranty of the roof that will not be replaced, the new shingles need to match the existing shingles.

The manufacturer has been contacted and the shingles used when the CBOC roof was installed are still available.

The existing roofing shingles are CertainTeed Landmark Premium - Max Def. (Color: Colonial Slate.)

4. Authority: The following authorities are for actions other than simplified acquisition.

☒ FAR 6.103-1: Only one responsible source and no other supplies or services will satisfy agency requirements, 41 U.S.C. § 3304(a)(1).

☐ FAR 6.103-2: Unusual and compelling urgency, 41 U.S.C. § 3304(a)(2).

☐ FAR 6.103-3: Industrial mobilization, engineering, development, or research capability; or expert services, 41 U.S.C. § 3304(a)(3).

☐ FAR 6.103-4: International agreement, 41 U.S.C. § 3304(a)(4).

☐ FAR 6.103-5: Authorized or required by statute, 41 U.S.C. § 3304(a)(5).

☐ FAR 6.103-6: National security, 41 U.S.C. § 3304(a)(6).

☐ FAR 6.103-7: Public interest, 41 U.S.C. § 3304(a)(7).

5. Reasons for Authority Cited:

In order to maintain the existing warranty of the remaining roof, maintain a uniform appearance throughout the roof, and to avoid the appearance of a patchwork of different roofing materials, the existing shingle must be provided and installed. A different shingle from a different manufacturer will not have the same appearance.

6. Actions to Increase Competition:

An increase in competition could be had by completely replacing the shingles of the entire roof, however, since that is not currently necessary, it far more financially beneficial for the Government to require the brand name shingle to replace only what is currently necessary.

7. Market Research:

The VA COR and VA Architect performed a side-by-side photograph comparison of different shingles from different manufacturers. The comparison revealed that shingles from alternate manufacturers were visually different in color, pattern and profile.

8. Procurement History:

Previous Purchase Order(s) or Contract(s): ☐ Yes ☒ No

If "Yes", for each purchase order or contract provide:

Purchase order or contract number: _____

Was action competed? ☐ Yes ☐ No

If action was not competed, state the cited authority, summarize rationale, and describe the actions that were supposed to be taken to increase competition and the results thereof:

9. Additional Information to support the justification.

N/A

10. Technical / Requirements Certification: I certify that the requirement outlined in this justification is a Bona Fide Need of the Department of Veterans Affairs and that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

Submitted By:
Position Title:
Email address:

Type name
Chief Engineer
Michael.LeBeau@VA.gov

MICHAEL LEBEAU

Signature

Date

 Digitally signed by MICHAEL LEBEAU
Date: 2026.04.09 11:14:05 -04'00'

11. Approval: I hereby certify that this justification is accurate and complete to the best of my knowledge and belief. Based on the foregoing, I approve this sole source justification subject to availability of funds, and provided that the services and supplies herein described have otherwise been authorized for acquisition.

Ronald Fantasia
Contracting Officer

Date